

24STCV28246 24STCV28246

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-30

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Case Number: 24STCV28246 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

ENRIQUE

MONTELONGO RODRIGUEZ,

Plaintiff,

v.

FCA US, LLC,

et al.,

Defendants.

Case No:

24STCV28246

Hearing Date: June 30, 2026

Calendar Number: 6

Defendant

FCA US, LLC moves to compel Plaintiff Enrique Montelongo Rodriguez's responses to Requests for Production of Document.

Defendant's motion is DENIED as moot.

Defendant's request for sanctions is DENIED.

Background

This is a lemon law action. On October 28, 2024, Plaintiff Enrique Montelongo Rodriguez ("Plaintiff") filed a complaint against Defendant FCA US, LLC ("Defendant") and Glendale Chrysler Jeep Dodge Ram, alleging causes of action for breach of express warranties, breach of the warranty of merchantability, negligent repair, and fraudulent concealment.

On May 18, 2026, Defendant filed this motion to compel Plaintiff's responses to Request for Production of Documents. On June 16, 2026, Plaintiff filed an Opposition.

No Reply has been filed.

Legal Standard

Where there has been no timely response to a demand for the production of documents, the demanding party may seek an order compelling a response. (Code Civ. Proc. § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

Sanctions

Sanctions are also mandatory in connection with motions to compel responses to production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.300(c).)

Discussion

On November 14, 2025, Defendant served Plaintiff with Request for Production of Documents, Set One. (Hughes Decl., ¶ 4; Ex. A.) On December 29, 2025, Plaintiff provided unverified responses. (Id., ¶ 5; Ex. B.) On April 22, 2026, Defendant's counsel sent a meeting and confer correspondence to Plaintiff's counsel advising them that Plaintiff provided unverified responses. (Id., ¶ 6.)

In opposition, Plaintiff argues that he served verified responses on June 16, 2026, and the late service was due to mistake, inadvertence, or excusable neglect under Code of Civil Procedure section 473. Specifically, the attorneys at Plaintiffs' counsel's firm who were responsible for handling the discovery responses subsequently departed from the firm, and during the ensuing transition, certain case assignments and associated deadlines were inadvertently overlooked and not brought to the attention of the newly assigned handling attorneys.

As responses have been provided, the motion is DENIED as moot.

Defendant seeks sanctions. Plaintiff has provided substantial justification for the failure to provide timely responses. Thus, the request for sanctions is also denied. The Court notes Defendant did not file a Reply to argue otherwise.